

Intellectual Property

Lecture 1

Intellectual Property

'Who owns my polio vaccine? The people! Could you patent the sun?'

Salk (1914-1995), who developed the first effective anti-polio vaccine

What is Intellectual Property

- **Intellectual Property**
 - relates to intangible creative work
 - Not necessarily the physical form on which it is stored or delivered.
- **Compare:**
 - Physically owning a compact disc versus...
 - ... owning the copyrights for the music on the CD.

IP and Changing Technology

- Four types of protection:
 - Copyright: the right to copy a work
 - Patent: the right to use/recreate/manufacture an invention
 - Trademark: the right to use a word, phrase, sound
 - Trade secret: you don't tell anybody, nobody should know

Copyright

- With some exceptions, copyright owners have the exclusive right to:
 - Make copies of the work
 - Produce derivative works
 - Distribute copies
 - Perform the work in public
 - Display the work in public

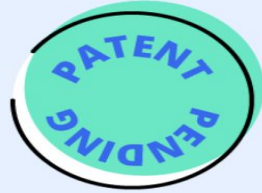
Examples of copyrighted work

- Literary works
 - books, pamphlets, poems
 - other works consisting of text
 - computer programs (!)
- Dramatic works
 - films, videos, plays, screenplays, scripts
- Music works
 - Compositions (words & music, or music only)
- Artistic works
 - Paintings, drawings, maps, photographs, sculptures, architectural works

Copyright vs. Patent

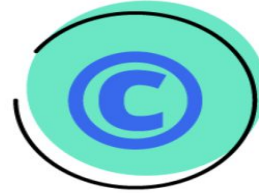
- Copyright:
 - Copyright protects creative works such as books, articles, plays, songs (both music and lyrics), works of art, movies, software, and videos.
 - Even if there is a closely similar work in existence.
 - Copyright owner has rights only against those who use their work without permission (i.e., defense against plagiarism).
- Patents:
 - Facts, ideas, concepts, processes, and methods of operation are not copyrightable. Patent, another legal concept that defines rights to intellectual property, protects inventions, including some software-based inventions.
 - For as long as patent lasts, holder has a monopoly right.
 - This right prevents anyone from producing implementations of their invention, even if same discovery was made independently.

Copyright vs. Patent



Patents

- Best for inventors
- Protects new designs, products, machines, plants, and processes



Copyrights

- Best for authors
- Protects music, art, architecture, literature, software, and choreography

IP and changing technology

- Problems for IP owners with newly available IT:
 - High-quality copying
 - High-quantity distribution
 - Faster / easier copying
 - Less expensive
- But note!
 - Intellectual property law has always evolved...
 - ... and has done so because of technological change.



First victim of music piracy?

- An important Baroque composer from Germany
- Prolific composer
 - Estimates range from 800 to 3000 works
 - Publishing his works was one of his sources of income
- In 1737:
 - Discovered his works were being pirated in France.
 - Went to Paris for six months
 - Cultivated royal favour
 - Works were then published in France.



Georg Phillip Telemann
1681 to 1767

Copyright Law: exceptions

- Fair Dealing doctrine (= US “Fair Use”)
 - For some uses of copyright work, permission is not required.
 - Allows uses of copyright material contributing to the creation of new work.
 - ... and which do not significantly affect sales of the material.
 - Allows some research and educational uses.
 - Also allows for news reporting and critiquing.

Fair dealing: Six Factors

- ❑ Fair dealing is a part of the Copyright Act, and allows for the reproduction of copyrighted works for certain purposes without getting permission or paying a fee. Some of the purposes for which fair dealing is allowed include research, education, criticism, review and news reporting.
- ❑ Six Factors of Fair Dealing:
 1. Purpose of the Dealing
 2. Character of the Dealing
 3. Amount of the Dealing
 4. Alternatives to the Dealing
 5. Nature of the Work
 6. Effect of Dealing on the Work

Fair dealing: Six Factors

❏ Purpose of the Dealing

- Research? Private study? Criticism?

❏ Character of the Dealing

- Single copies made? Multiple copies?
- Distributed widely? Or to a limited group?
- Were copies destroyed after its purpose accomplished?

❏ Amount of the Dealing

- How much of the work is used?
- What is the importance of the infringed work?

Fair dealing: Six Factors

- ❑ Alternatives to the Dealing
 - Are non-copyrighted versions available to the user?
- ❑ Nature of the Work
 - Was the work published? Or unpublished? Secret?
- ❑ Effect of Dealing on the Work
 - Is it likely to affect the market of the original work?

Purpose of copyright?

- Should it protect the author in something that is rightly theirs?
 - Protection should be as long and broad as possible.
 - Should only provide those exceptions and limitations essential in the public interest.
- Should it benefit the public by stimulating creation of artistic work?
 - Universal Copyright Convention (Geneva, 1952)
 - The law should only give as much protection as is necessary to induce authors to create and disseminate their works.
- Should it do both?
 - Purpose of copyright is to stimulate the creation and public dissemination of works
 - And also to give their authors a generous reward for their contributions to society.
- A delicate balance.

Thank You